

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201600307	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/06/2016 5:25 PM	Location of Incident: East 187th Street and Southern Boulevard	18 Mo. SOL 7/6/2017	Precinct: 48		
Date/Time CV Reported Wed, 01/06/2016 5:38 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/13/2016 11:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Bryn Miet	04508	954132	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Hasan Radoncic	08099	957063	048 PCT
2. SGT Ayotunde Adeniyi	01246	934370	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Bryn Miet	Abuse: PO Bryn Miet stopped § 87(2)(b)	A . Substantiated
B . POF Bryn Miet	Abuse: PO Bryn Miet refused to provide her name and shield number to § 87(2)(b)	B . Unsubstantiated
C . POF Bryn Miet	Discourtesy: PO Bryn Miet spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POF Bryn Miet	Abuse: PO Bryn Miet threatened to arrest § 87(2)(b)	D . Substantiated

Case Summary

On January 6, 2016, at approximately 5:00 p.m. § 87(2)(b) was standing with his friend, identified by the investigation as § 87(2)(b) near the corner of East 187th Street and Southern Boulevard in the Bronx. § 87(2)(b) and § 87(2)(b) were talking and praying at the time. He was stopped by PO Bryn Miet of the 48th Precinct (**Allegation A**). PO Miet was accompanied by PO Hasan Radoncic of the 48th Precinct. PO Miet allegedly told § 87(2)(b) that he had drugs on his person. In response, § 87(2)(b) told PO Miet to search him. § 87(2)(b) requested that PO Miet write down her name and shield number for him, and PO Miet allegedly did not provide it (**Allegation B**). PO Miet allegedly stated in response, “I don’t have to give any shit to you” (**Allegation C**). PO Miet then went into a building located at 2363 Southern Boulevard, because § 87(2)(b) was allegedly following her and PO Radoncic. § 87(2)(b) was speaking to IAB on his cell phone. When PO Miet and PO Radoncic went out of the building to speak to § 87(2)(b) PO Miet threatened to arrest § 87(2)(b) (**Allegation D**). PO Miet allegedly said, “Now you fuck up by yourself. Now I am going to arrest you” (**subsumed under Allegation C**). Sgt. Adeniyi of the 48th Precinct then arrived on the scene, and gave § 87(2)(b) PO Miet’s shield number and name. § 87(2)(b) was not arrested, issued a summons, or injured during this incident.

The investigation was unable to obtain any potential video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during his in-person interview on January 22, 2016, § 87(2)(b) (B.R. 1).
- As of February 12, 2015, a Notice of Claim had not been filed on § 87(2)(b) s behalf in regards to this incident (B.R. 2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed 18 distinct CCRB complaints since 1986 (B.R. 4).
 - § 87(2)(b)
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
- PO Miet has been a member of service for three years. This is the first CCRB complaint filed against her (B.R. 5).

Potential Issues

- A statement was not obtained from § 87(2)(b), who was present solely for the initial stop. § 87(2)(b) refused to provide any information besides her name. The investigation, consequently, did not have sufficient information to reach § 87(2)(b) to obtain a statement from her.
- Surveillance cameras were located on the building, but Park Management Company, which manages the building, was uncooperative with requests for footage. § 87(2)(g)

Findings and Recommendations

Allegation A –Abuse of Authority: PO Bryn Miet stopped § 87(2)(b)

It is undisputed that PO Miet stopped § 87(2)(b) (B.R. 1, B.R. 6, and B.R. 7). It is also undisputed that § 87(2)(b) said that PO Miet could search him after she stopped him (B.R. 1 and B.R. 7). § 87(2)(b) testified that at the time PO Miet stopped him, he was praying with his friend § 87(2)(b). He was holding her hand in his left hand, and a Bible in the other (B.R. 1). After PO Miet stopped him, she allegedly told him that he had drugs on his person, and in response, he asked her to search him. PO Miet did not do so.

PO Miet stated that when she initially saw § 87(2)(b) he was standing approximately five feet away from her. When she approached § 87(2)(b) he quickly placed something in his pocket. PO Miet could not list any additional factors behind the stop. She could not describe the object in any other manner than saying that it was smaller than § 87(2)(b)'s hand. PO Miet stated that there were no conditions that characterized the corner where she stopped § 87(2)(b) on the date of the incident. She denied telling § 87(2)(b) that he had drugs, but she corroborated that he told her to search him. PO Miet did not search § 87(2)(b). She completed a Stop, Question and Frisk report in regards to this incident. The only listed factor for the stop was “actions indicative of engaging in a drug transaction.” During her interview, PO Miet stated that § 87(2)(b) quickly moving his left hand to his pocket while huddled against a wall was the sole basis for the stop.

PO Miet completed a UF-250 report in regards to this stop. The only factor listed for the stop was “actions indicative of engaging in a drug transaction” (B.R. 8).

PO Radoncic did not see how the stop started, but he asked PO Miet about it on the scene, after the stop ended. PO Miet told PO Radoncic that she had seen § 87(2)(b) quickly move his hand away when she approached. PO Radoncic did not see this occur (B.R. 7).

People v. DeBour, 40 N.Y.2d 201 (1976) requires officers to have reasonable suspicion that an individual has engaged in, will engage in, or is engaging in a penal law felony or misdemeanor before they can conduct a stop (B.R. 9).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B -Abuse of Authority: PO Bryn Miet refused to provide her name and shield to

§ 87(2)(b)

Allegation C-Discourtesy: PO Bryn Miet spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) requested PO Miet's name and shield number, and it is undisputed that § 87(2)(b) asked PO Miet to write this information on a sheet of paper.

§ 87(2)(b) stated that PO Miet refused to provide her name and shield number in any capacity. He also testified that PO Miet told him, "I don't have to give shit to you." § 87(2)(b) stated that later in the incident, PO Miet told him, "Now you fuck up by yourself. Now I am going to arrest you" (B.R. 1)

PO Miet and PO Radoncic both stated that PO Miet held her shield out on her chest when § 87(2)(b) asked for her name and shield number. They both testified that § 87(2)(b) did not at any time indicate that he did not understand or could not read PO Miet's shield number. Both officers denied that PO Miet made the discourteous statements alleged by § 87(2)(b) (B.R. 6 and 8).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B** and **C** be closed as **unsubstantiated**.

Allegation D-Abuse of Authority: PO Bryn Miet threatened to arrest § 87(2)(b)

It is undisputed that PO Miet told § 87(2)(b) that he could be arrested in front of 2363 Southern Boulevard.

In § 87(2)(b)'s initial complaint to IAB, he said that PO Miet told him that he could be arrested for harassment. During his in-person interview, § 87(2)(b) said that he followed PO Miet and PO Radoncic from a distance of ten to 15 feet. PO Miet went into 2363 Southern Boulevard, then came back out approximately ten minutes later. § 87(2)(b) testified that she said, "Now you fuck up by yourself. Now I am going to arrest you" (B.R. 1).

PO Miet stated that after she stopped § 87(2)(b) he began to follow her from five to ten feet, yelling and waving his arms. She and PO Radoncic went into a nearby building to get away from § 87(2)(b). She called Sgt. Adeniyi, her supervisor, who told her to obtain information from § 87(2)(b)'s identification. When PO Miet left the building, and requested § 87(2)(b)'s identification, § 87(2)(b) refused to provide it. PO Miet then told § 87(2)(b) that he could be arrested. When asked during her CCRB interview why she told § 87(2)(b) that he could be arrested, PO Miet stated that he had been committing an offense subject to arrest: obstructing governmental administration. When asked how § 87(2)(b) had been obstructing governmental

administration, PO Miet stated that § 87(2)(b) s following her hindered her ability to conduct a foot patrol (B.R. 6).

PO Radoncic denied seeing § 87(2)(b) from the time when PO Miet finished her stop and when he went into the nearby building. He stated that the officers went into the building as part of their patrol assignment. He did, however, see § 87(2)(b) standing on the sidewalk, 50 feet away from him and PO Miet, when he and PO Miet were in the lobby of the building. When he and PO Miet left the building, PO Miet told § 87(2)(b) that he could be arrested for harassment (B.R. 7).

Patrol Guide Procedure 208-01 allows officers to arrests individuals for whom they have “reasonable cause” have committed a crime in their presence (B.R. 10). New York Penal Code Section 195.05 defines obstructing governmental administration as the prevention or attempt to prevent “a public servant from performing an official function, by means of intimidation, physical force or interference” (B.R. 11).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date